



File No.: EXP202102527

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed an initial complaint with the Spanish Agency for Data Protection on 14/09/2021, which was expanded on 14/12/2021 and 2/01/2022. The complaints are directed against the DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS-CEUCD, with NIF S3511001D (hereinafter, the respondent).

The claimant believes that the implementation of the GOOGLE SUITE FOR EDUCATION platform (GS hereinafter) does not meet or comply with the legal requirements regarding data protection.

The claimant refers to events that occurred since the 2019-20 school year at IES ***IES.1 (hereinafter IES), where their child B.B.B. was enrolled.

They frame the chronology of events with the signing of the Agreement between CEUCD and GOOGLE IRELAND LIMITED BOC (19/10/2020) within the Plan for Digital Education, "for the use of GOOGLE SUITE FOR EDUCATION in public educational centers dependent on the CCAA of the Canary Islands." "For the 2021/2022 school year, (9/09/2021), a model of informed consent was provided to the parents of students" for the use and processing of "digital and telematic service solutions for communication and collaboration GSUITE" at the link: ***URL.1"

According to the claimant: "we have been two years where they have been registered on a platform that has not even requested our authorization," by decision of the IES and that with the signing of the Agreement "This year they have adhered to the agreement of the Department of Education where on this occasion they have indeed requested authorization for use following the instructions of the Department. In the years prior to the signing of the agreement by the Department, they did not request any informed consent, nor were the processing activities generated for its use, without conducting any evaluation of them regarding information security."

They provide a link to the "welcome manual 21/22" from the IES, with "Index," clicking on "GSUITE," accesses the welcome manual for the 21-22 course that contains information about the GS platform for Education.

Among other aspects, it is indicated that: "G Suite for Education is a package of tools and services from Google for educational centers. It provides accounts with a domain name customized by the client and offers associated services, tools, and web applications with functions similar to traditional office suites: Gmail (email), Meet (videoconferencing tool essential for interaction between students, teachers, and families in the case of telematic education), Calendar, Drive (cloud storage), text editor "Google Docs," spreadsheets, presentations, etc. (...)" "The management team of the educational center must only register students in this Service if they are in possession of the Informed Consent Document from the families who have signed accepting the conditions of participation. This document must be kept by the center.", featuring a link to the "informed consent document."

The claimant makes a series of clarifications regarding the welcome manual, which can be summarized as:

- a) "Use of the videoconferencing tool with parents, when there is no processing activity regarding them, seems to be used for "administrative tasks," when it was informed that it is a support resource that complements the offer of platforms from the Department, but it is not clarified that the parent or student can opt for the tools provided by the Department, "since only authorization is requested for GSUITE." "The implications of their rejection are not clarified."
- b) "Coexistence of email accounts with the .es domain for the operation of GS educational, with the institutional account of the Government of Canary Islands org. This is indicated in the "FREQUENT QUESTIONS" of gobiernocanarias, which can be accessed through a link in the informed consent document, ***URL.2, which also provides information about the application. "The account ***EMAIL.1 comes included and is necessary for access to the Gsuite services package. The corporate email for

official purposes remains “***EMAIL.1.”

Among other issues raised in FREQUENT QUESTIONS, which deserve mention, stand out:

- “If we already have a functioning Google account, with a center domain, can I continue using it?”

At this time, the G Suite for Education service of the Department of Education has already been launched, following the signing of the Agreement with Google to offer G Suite accounts from the Department of Education to the teaching staff and students of public educational centers in the Canary Islands.

The use of this corporate G Suite for Education guarantees that it is covered by the agreement signed by the Department of Education, and for this, the corresponding register of personal data processing activities (RAT) called “technological solution for communication and collaboration G SUITE” has been created.

Therefore, it is recommended to use the G Suite for Education of the Department of Education to be covered by the aforementioned agreement and registered in the specified data processing activity.

Since the other G Suite different from that of the Department would not be covered by said agreement, nor in the mentioned data processing register.

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3/53

Finally, it should be noted that the domain used in the Educational G Suite of the Department of Education, “canariaseducación.es,” is a registered and authorized domain, in accordance with the ORDER of May 23, 2019, which approves the internet domain policy of the Public Administration of the Autonomous Community of the Canary Islands.

- “What can the email “***EMAIL.1” be used for?”

The email of the teaching staff and students associated with the Educational G Suite of the CEUCD can only be used for educational purposes, provided that users have signed the informed consent for the use of G Suite services.

For administrative, management, and communication purposes with families, the corporate email of the center and the teaching staff “***EMAIL.1” will be used.

- “Is it possible to export the entire structure of the current G Suite, specific to the center, to the new G Suite account of the Department of Education?”

No, the structure of a previous G Suite cannot be migrated to the Educational G Suite of the Department of Education, but the content of some of the G Suite services can be transferred or copied, as explained in the corresponding section of this website.”

- “When the G Suite service of the center was activated, families were asked to sign a consent form. Is that consent valid for the Educational G Suite of the Department? How often is this model used?”

Only the informed consent model specifically created for the use of the Educational G Suite service of the Department of Education is valid. This signed document will be kept at the center and will be requested from all students to manage their accounts in the G Suite.

Each student must have this signed document when they first join the center, and it will not be necessary to request it again unless they wish to revoke it.

- “What happens when the content of any G Suite is transferred to the new Educational G Suite of the Department of Education?”

The services that are transferred through the “Account Management” of the G Suite are Gmail and Drive. In this process, which must be carried out by each user, all data from the Gmail email (except contacts, chats, and tasks) and the documents owned by them that appear in Google Drive (except files in the “Google Photos” section of Drive and files included in shared drives) are transferred.

The original files remain in the source G Suite account, so once the transfer is completed, changes made to the copied files will not affect the originals; since ownership is transferred to the new Educational G Suite account.”

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4/53

SECOND: The claimant refers to their unsatisfied claim of June 20, 2021, addressed to the Vice-Department, concerning events that occurred at the IES during the 20/21 academic year and the previous 19/20 year. "They request that the violations communicated to the DPD regarding the LOPDGDD be evaluated, carrying out the sanctioning resolution."

They refer to the account of the facts in the EXPONE of the document "General Electronic Registry of the Government of the Canary Islands" and indicate five annexes that were presented at the time to the IES related to the facts:

Annex I - 07/08/2020 delivery of signed enrollment to the IES.

Annex II - 11/07/2020, complaint to IES, entry registration 543. No copy of it is provided.

Annex III - 12/03/2020 response from the IES, exit reg. 129, (it is not such, it is a postponement in the response taken by the respondent).

Annex IV - 12/28/2020 response from the IES.

Annex V - Response to the IES letter dated 12/28/2020.

They initiate the claim:

1- "For the current 20-21 academic year," they completed "the enrollment through telematic means at the Department," in addition, the IES required its presentation which was made in person "on 07/08/2020," indicating non-conformity with the included annex titled: "REQUEST FOR COMPLIANCE WITH THE GDPR." In relation to that statement, annex 1 is not provided, and it cannot be known the terms in which they express their non-conformity.

- "They express disagreement with the use of tools not belonging to the Department, a breach of the GDPR when requesting our authorization for the registration of our child in the GSUITE and MICOLEGIOAPP applications," "expressing our non-conformity." - "At the beginning of the course," "without authorization, they re-registered our child again on that platform, despite having expressed our non-conformity in the enrollment, violating what was requested in the annex." They do not provide a copy of the document in which the statements they express occur.

2- "At the end of last year," when providing GOOGLE with our child's actual age, this account was blocked by GOOGLE indicating that they were not old enough, as the minimum age to have a Gmail account is 14 years."

3- "Additionally, new violations occurred, for which on 11/07/2020, a NEW letter was submitted to the IES - ANNEX II - entry 543," when saying new, it is unknown what the previous one was, although they do not provide this one from 11/07/2020 "in which they present their list of objections to the use of the application, requesting the deletion of the user, deletion of emails in the destination mailboxes of the student and the parent, with the export of the information generated upon registration on the platform. (Annex II), adding:

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5/53

3.1 "The consent clause does not clarify correctly that it cannot be interpreted that the authorization request could be for minors, for the use of the GSUITE business platform, which is suitable for adults."

3.2 "There has been no response to the refusal of its use" "within the times indicated in the annex to the enrollment."

It refers to the use or consequences of it in the different applications of the GS platform:

3.3 "Registration in the 'cloud platform' without parental consent, through an agreement signed directly by the Director with GOOGLE."

3.4 "Use for the education of your child of emails not belonging to the Ministry, with international data transfer, especially after the annulment of the privacy shield by the ruling of the CJEU of 16/07/2020."

3.5 "Use of the same emails for administrative tasks of the center, with the domain of IES.es."

3.6 "Use of the videoconferencing tool of the GS platform for communication with parents and students, without authorization for its use."

3.7 "Use of GOOGLE forms indiscriminately and in disproportionate amounts, without clarifying the reason for the request for such information, with excessive data, such as those related to physical education or tutoring."

3.8 "Provide a telematic platform for training, that is 'under the umbrella of the Ministry' which includes the use of corporate accounts of the Government of the Canary Islands for communication with parents or children for both educational and administrative activities."

4- Provides a copy of the response from the IES, Annex 4, dated 28/12/2020 (states it responds to that of 27/11/2020, registration 543), explaining the five points requested, that it will proceed "in January to execute points 1, 2, and 5 that head your letter. Refers to:

4.1 "The email used by the management team, the teaching staff for internal and external communication with the sectors of the educational community is the corporate one and authorized in the annual general programming for this 2020-21 course."

4.2 Informs you of the Ministry's subscription to an agreement with GSUITE, published in the BOC of 19/10/2020, "and therefore, subsequent to the use of the Google tool by the center," being under the guarantees of data protection established offering two links regarding the scope and other resources of the activity of processing virtual learning and collaboration spaces - order of 25/05/2018, and another order from the General Directorate of Organization, Innovation, and Quality (DGOIC), of 11/09/2020, registers the activity of processing "technological solution for communication and collaboration GSUITE."

5) In ANNEX 5, presented "response to the IES letter" on 29/01/2021 (provides a copy), indicating:

5.1 Despite being informed of the existence of the agreement of the Ministry with Google "they decline its use," and as observations indicate:

5.1.a "Expects that 'the deletion of the account from the platform will be carried out in the requested terms'."

5.1.b "The corporate emails end with .org and this is not the case, 'since they are under the contract signed between the center and GOOGLE and the Ministry did not intervene in it'."

5.1.c "We agree on the use of another available telematic platform, the EVAGD, and are willing to migrate the information to that platform."

6) "They have not received a response from the center, noting 'new violations' (detailed in points 6.1 to 6.4 of the 'General Electronic Registry of the Government of the Canary Islands', referring to the use and manner of it in the applications of the platform:

6.1- "Use of Google forms, for example, to conduct surveys for exams and assignments, adding more personal data, the grades of our child after having indicated that we do not authorize their use of the service. Google forms do not form part of GS Suite, being indeed a tool that belongs to Google.

6.2- Use of non-corporate emails. Communication with the teachers continues to be with emails referred to by them as corporate, when they are not, being the corporate ones those ending in .org.

6.3- Access of minors to services as adults. These are the additional services of GS such as YouTube, Maps, or bloggers without age restriction, since upon obtaining consent from GS users for educational centers, it is used for authorized additional services, when YouTube has not even been included in the agreement reached by the Ministry with Google, being additional services, with a different privacy policy than the rest in the applications.

6.4 From the contact directory of GS, there is access to the complete list of students and teachers of the center including their full name, email, and photo, which could facilitate the filtering of them outside the platform."

7) As a continuation of the complaint, provides a copy of the letter from the Vice-Ministry of Education, Universities, and Sports that responds to your complaint of 20/06/2021, in an email of

***DATE.3

, indicating:

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28001 – Madrid
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7/53

A document has been sent from the Educational Technology Area (DGOIC) to the IES “with guidelines for the educational, safe, and responsible use of digital technologies, taking into account the protection and privacy of data.”

Certificate from the IES of the “cancellation of your child's email account” (this certificate is attached as a file to that email).

The IES “For the 2021-2022 school year, has already requested for its educational center the domain “canariaseducación.es”, to be part of the G-Suite of the CEUCD, as well as the necessary procedures to nullify the previous one.”

THIRD: The claimant presents to this AEPD a document dated 14/12/2021, stating:

1 “At the time of submitting this complaint to the AEPD, we had no response from the IES” which occurred on ***DATE.2, providing its copy in ANNEX 6.

“We emphasize that we have limited this complaint to the two previous school years 2019-2020, 2020-2021 and the enrollment request for the current school year 2021-2022.”

“During the current school year, we have submitted new complaints to the DPD regarding the CEUCD educational GSuite platform that are not related to the GSuite specific to the IES La Labor center,” which is the subject of the current complaint.

2 In ANNEX 6, which contains the response from the respondent dated ***DATE.2, “to the writings submitted up to today,” it is noteworthy, along with the observations of the claimant:

2.1

“On 16/01/2021, the coordinator TIC proceeded to the
(...)”

by the TIC coordinator

(by protocol, it remains suspended for 20 days until its total elimination).”

“The educational team of XXXXX will be informed that the student will no longer be able to use the GSUITE tool, established as a virtual learning environment as reflected in the center's PGA.”

Observation: “We do not understand with what authority they carry out such elimination, without providing us with anything requested in writing, without any migration plan, and without a copy of the account content.”

“On January 18, the student's father requests” in “a telephone conversation with the TIC coordinator, that the account of the domain ieslalaboraldelalaguna.es be reactivated until a new writing is presented, as he does not agree with the alternative actions and proposes that among others, the EVAGD environment (virtual learning environment hosted on the servers of the Ministry of Education, Culture, and Sports (CEUCD) (not used by most ESO teachers) and the JITS video call app be used.
(...)”

Observations: “We clarify that the proposal from the TIC coordinator consisted of:

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28001 – Madrid

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8/53

“Migrating our son's account from the IES ***IES.1 GSuite to the CEUCD Educational GSuite” “for which informed consent is required, which had not been requested from us. We indicated that with the experience we had in previous years, we were going to reject its use.”

“It was expressed that our will was for the migration to be carried out to the main and own platform of the Ministry and that the account should not be eliminated.” “We were preparing a writing expressing our will to migrate it to EVAGD.” “This writing was submitted by entry registration at the center on 29/01/21, without receiving a response. Moreover, our son continued to use the center's GSuite and we were never provided with anything requested in that writing which included the backup copy of our son's profile contained in Annex 5, 29-01-21 Response to the writing from IES La Laboral dated

28_12_2020.pdf.”

2.2 “On 10/06/2021, an account with a code ending in 91@canariaseducación was created, attributed to the IES (order of 23/05/2019, approves internet domain policy in the APU of Canarias) and official communications of procedures for the 21-22 school year were articulated with the educational community,” such as those from 18/06 from the Director, informing of its implementation as the corporate educational email of the Government of Canarias, and on the same date, from the TIC coordinator “to all students, information about the elimination of accounts from the domain ieslaboraldelalaguna.es at the end of the 20/21 school year.” Also, on 24/06/2021, “the TIC coordinator informed all the teaching staff of the IES about the elimination of accounts from the domain ieslaboraldelalaguna.es for students at the end of the 20/21 school year and the prohibition of communication with the teaching staff’s email with students and families starting in July.” “They are informed on how to transfer the contents from the old GSuite to the new one.”

“After the end of the 21-22 school year” (undoubtedly, it must refer to the 20/2021 school year), “on 07/07, the definitive elimination of the student’s account

B.B.B.

...from the domain ieslaboraldelalaguna.es,
definitive elimination on the 26th of the same month.”

Observation: “It is highlighted that in the email from the TIC responsible it indicates that the eliminations will be carried out in mid-September (the emails from the TIC responsible for the elimination of the accounts are included at the end of this writing),” it quotes verbatim: “Once the school year is finished, it is reminded that all material from Drive and emails must be downloaded, as in mid-September the current GSuite accounts will be eliminated, to assign the new ones for the 2021/22 school year. During the summer and early September, they will remain active for recovery tasks.” It provides a copy of the aforementioned email from the IES dated 18/06/2021 to students and tutors, in which it is expressed in the cited terms.

“On 09/09/2021, the student's family does not authorize the use of the G SUITE of students in public educational centers of the

9/53

Ministry of Education, (denial in the application document for enrollment of the single form and through informed consent.)

Adds a screenshot of the deletion of the claimant's child's account from the mentioned domain and a certificate, which is not appreciated as it is not legible.

2.3 “On June 28, a letter from the claimant is received, attaching annexes stating the repeated illegal clause in the enrollment process for the 2021/2022 academic year.”

Observation: “It has already been included in this claim.”

In point 2 of annex 6, the IES continues: “Regarding the claim, reiterated in the enrollment process, in this case, for the 21-22 academic year” in the enrollment process through the unified document, it is not required nor is it mandatory to attach annex 1 of the IES.” In the enrollment instructions described on the center’s website, it does not indicate the obligation to present the ANNEX.” Provides a screenshot, in which it informs: “download annex 1” which contains certain information about instructions for payment, digital licenses - not mandatory - according to instructions in Annex 1. “It should be noted that if payment is made in this non-mandatory procedure, it will enter into the offer made by the center, with a 50% discount on the price compared to what would have to be paid if done directly to the companies” and emphasizes the convenience of attaching all the documents described in the previous points - annex 1.

The IES states that “in annex 1 it is described, in the section on informed consent, to attach this document as an annex to the enrollment application” without requiring its presentation, indicating that in the case of voluntarily presenting it, it will be understood as informed consent.”

“Those interested in enrolling in the IES have the option not to agree with annex 1 and not to present it, and must specify in the unified enrollment document the consent or not in the dissemination media section, where it is communicated: “informed consent for the treatment of images and voice of students in public educational centers of the Ministry of Education, Universities, Culture, and Sports.”

“The annex of the IES for enrollment in the 21/22 academic year is nothing more than a tool to improve

the internal management of the center in the pursuit of continuous improvement and Educational Quality of a non-mandatory nature.”

Observation: “We emphasize that the document ANNEX 1 does not allow for the differentiated rejection of each of the sections contained therein.

C/ Jorge Juan, 6

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28001 – Madrid

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10/53

“We highlight that, along with said clause, a 50% discount on the cost of books is included in the same annex, and we do not see how the discount on the books can be disposed of while also rejecting the illegal clause since both are included in the same annex.”

“On the other hand, it is not understood why they refer to the enrollment section “Dissemination Media,” which is for the activity of treatment of “Informed consent for the treatment of images and voice of students in public educational centers of the Ministry of Education, Universities, Culture, and Sports.” which has nothing to do with the request for informed consent for the Educational GSuite.”

2.4 In point 3, the IES states that “Regarding the requirement to recover the information from the user profile and backup copies, the deletion of the user account has been carried out as requested, and such information cannot be recovered, and all students were informed on June 18 that all accounts would be deleted, so they had time to make a backup of them and of the backup copies regarding the requirement to recover the information from the user profile.”

2.5 The IES concludes in point 4, indicating that it guarantees that if the non-authorization for being registered in GSuite is collected, the account will not be created and cannot be used. It ends the document, referring to alternatives for the claimant's child's work, such as task submissions and digital licenses, presenting options.

3- As annex 7, the claimant provides an email from the Vice-Ministry, dated 4/11/2021, addressed to him, in which he responds to a previous one regarding “the recovery of the user profile and backup copies, as it is an external G Suite to that offered by the CEUCD, only the center itself can carry it out, which has access to them and the capacity to manage them. In any case, generally, it is the user himself who can make backups of his accounts. We deduce that either the account may have been deleted before the user made a copy of it, or as the interested party claims, he did not have permissions. The existing information on the network indicates that deleted accounts remain for 20 days: ***URL.3.” It transcribes that: “The IES ***IES.1 responds that: “In response to the family’s “demand” for “...the recovery of the information from their child's user profile and backup copies, which the IES should have to correct errors like those it has committed,” they inform that: As indicated in the certificate from the center's secretary (which has already been attached), the deletion of the family’s child's account has been carried out as requested, and the information cannot be recovered, and all students were informed on June 18 that all accounts would be deleted.”

It adds that in the admission for processing, “the use of forms by the Center, and the use of the MICOLEGIOAPP application for communications with parents and students” should be taken into account.

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11/53

FOURTH: In the addition to the claimant's submission presented to this AEPD on 2/01/2022, a claim is made regarding the G SUITE consent form provided by the CEUCD, having two children studying in centers dependent on said Ministry and having previously submitted a claim on 12/10/2021 (a summary copy is provided in Annex 1 in an 8-page summary, although the actual claim is not included) for violation of the legal framework on data protection, and a response was received on 29/11/2021.

The document continues with an introduction, a summary of the sections included in the claim,

containing up to 13 points, conclusions, and a request. In the same document, the response from the Vice-Ministry and its observations are recounted.

However, from the summary of what was presented by the claimant and the response of the respondent, along with the claimant's observations in the summary, the object of the claim can be understood.

In the response, the Vice-Ministry indicates:

1) It informs of the purpose of the consent request for minors under 14 years old, and for adults, "to provide them with an educational G SUITE account from the CEUCD and to manage it for access to the main Google services and the additional services necessary to carry out the educational function, and to inform about the processing of 'digital and telematic service solutions for communication and collaboration G SUITE of the students.'"

As an observation from the claimant, it indicates that the form details the services offered, "main" and "additional," "not allowing for the choice of the same," considering that the "additional" services have specific terms of use.

The respondent also justifies the lack of necessity for consent for data processing in the exercise of the educational function, pointing to the AEPD Guide for educational centers and LO 2/2006, disp. adic 23.

As observations from the claimant, "that would be for the use of proprietary tools where there is no transfer of data to third parties or no international data transfer. Moreover, it is not done for the case of EVAGD or the App Student and Family." This does not exempt the CEUCD from the obligation to comply with the rest of the requirements of the RGPD/LOPDGDD, for example, the definition of the privacy policy, data processing activities, impact assessment, and risk analysis among others.

- Regarding the response on "security policy," the claimant states that the response pertains to the services of the Ministry, which do not relate to the educational GS tool.

- Regarding the "risk analysis," the claimant points out that it refers to actions on the processing of "personal data related to virtual learning and collaboration spaces," explaining the purpose of it, noting that this analysis is of the activity of or for the services of the CEUCD, being referred to differently than GS: "Digital and telematic service solutions for communication and collaboration G SUITE."

2) Regarding the "Impact Assessment," the respondent indicates that for G SUITE, it has been carried out with the GESTIONA tool made available by the AEPD, "that...

12/53

"allows for the early evaluation of the potential risks to which personal data are exposed based on the processing activities carried out with them," yielding an acceptable residual risk, mentioning various documents attached to the DPIA such as the document "GS risk management," "GS compliance checklist." Furthermore, it qualifies as critical documentation for third-party knowledge. As an observation, the complainant indicates that the date on which it was made is not specified and its compliance has not been evaluated.

3)

Regarding the consent form provided by the complainant via link, titled:

"INFORMED CONSENT FOR THE USE AND PROCESSING: 'DIGITAL AND TELECOMMUNICATION SERVICES SOLUTION FOR COMMUNICATION AND COLLABORATION G SUITE OF STUDENTS IN PUBLIC EDUCATIONAL CENTERS OF THE DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS'

The complainant states about G SUITE educational and the Agreement:

- There are shortcomings in the duty to inform and in the transparency of the information and transparency in the consent model, extensible to:

- "Evaluation of applications in main and additional services regarding trackers, location of services, analytical cookies, and privacy policy."

- "Location of the information. Non-compliance with the ruling of the Court of Justice of the European Union in case C-311/18," Schrems II.

- The principle of data minimization is not applied.

- Non-compliance in the definition of the data processing activity.

- As a user accessing G Suite educational, the CIAL identifier is used, which is personal data.

Furthermore, it is used as an identifier for emails that, although the sending of emails outside the platform is restricted, this personal data is provided to others when an anonymous identifier could be used, for example.”

He concludes that a violation of the fundamental right to privacy is occurring.

FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 1/10/2021, this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. Specifically, it was requested:

“1. The decision made regarding this complaint.

2. In the event of exercising the rights regulated in Articles 15 to 22 of the GDPR, proof of the response provided to the complainant.

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13/53

3. A report on the causes that led to the incident that originated the complaint.

4. A report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

5. Any other information deemed relevant.”

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 1/10/2021 as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

SIXTH: On 30/11/2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

SEVENTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD.

On 25/01/2022, information was requested regarding the use of G Suite for Educational Centers by IES ***IES.1, specifically:

1. “Description of the personal data processing activities carried out with the aforementioned information, indicating which data relates to students and which data relates to parents or guardians.”

On 18/02/2022, despite indicating that information was being collected from the IES, a response was received from the complained party referring to the G SUITE educational service, not from the IES, which is inferred from the complainant's complaint was used previously, but from the one implemented through the subscription of the Agreement made by CEUCD with GOOGLE IRELAND. It states:

“The educational G Suite service of the Department of Education, Universities, Culture and Sports of the Government of Canary Islands only processes data of students and teachers from non-university public educational centers dependent on said Department. In no case does it process data of the legal representatives or family of the students.

Students access the G Suite Educational services with CAS authentication (Centralized Authentication System)” and the data that Google processes from it are:

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14/53

Name

Surname

XXXX (...)

Email (***EMAIL.1)

Student Avatar

"The services provided by G Suite (Google Workspace for Education Fundamentals) utilize various academic and professional data provided by users: student productions, grades, groups, subjects... The purpose of processing this data is to access the G Suite Educational service for strictly educational purposes, to support the teachings of non-university public educational centers in the Canary Islands."

1. "Legal basis supporting the data processing carried out with the GSUITE application. In case consent from the guardians is obtained, a copy of the consents from the legal guardians of the student at the center."

It states that: "The legal basis on which the processing of personal data carried out with the GSUITE application is based is formed by the following legal provisions:

- Article 6.1.a) GDPR.

Furthermore, this processing is based on compliance with legal obligations and the exercise of public powers conferred to the data controller."

It mentions:

- Articles 83.1 and 92 of the (LOPDGDD) which recognizes the right to digital education, and the one related to the protection of minors' data on the internet.

- Article 2.1.l) of Organic Law 2/2006, of 3/05 on Education, as amended by the final provision 10 of the LOPDGDD.

- Section 2 of Article 111 bis ("Information and Communication Technologies") of the aforementioned Organic Law 2/2006, of 3/05, on Education.

- Article 24 ("Virtual educational spaces and new environments for learning and communication") of Law 6/2014, of 25/07, on Non-University Education in the Canary Islands.

- Organic Law 3/2020, of 29/12, which amends Organic Law 2/2006, of 3 May, on Education.

- Digital Education Action Plan (2021-2027).

It is noted that the "informed consent" form refers to informed consent as the legal basis that "will allow processing." A copy is provided in document 2.

2. "Information provided to the parents or guardians of the students regarding the processing of personal data carried out with the aforementioned application."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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15/53

It states that: "The parents or guardians of the student do not consent to the processing of the 'digital and telematic services solution for communication and collaboration G Suite', therefore, a user profile has not been created for them in G Suite.

They provide a copy of document 1 of the 'Non-consent of the parents or guardians' through the 'informed consent form' for the G SUITE for EDUCATION services, dated 9/09/2021, included in the activity 'digital and telematic services solution for communication and collaboration G SUITE'.

The respondent states that they had posted the informed consent form on the Ministry's website at the time of the enrollment request for the 2021-2022 academic year.

3. "Contract or contracts signed with the entity supplying the application, indicating whether such contracts have been signed by IES ***IES.1 or by the Ministry of Education, data protection addenda if any."

Again, it does not refer to what was asked but to the Agreement. Adding that, in it, the parties commit through the clauses that integrate the GENERAL TERMS and ANNEXES of the ADDENDA - "Data Processing Addendum to the GSUITE agreement and/or complementary products - for reference purposes" - whose version in force at the time of signing is included as a reference in Annex 2 of the

agreement and is published in the aforementioned BO.

It also states that “the standard contractual clauses were signed with the agreement.” It attaches document 4 indicating that when the exporter (data controller) of data executes a G SUITE contract and accepts by clicking the button, the clauses will be effective - including appendices 1 and 2).

“Furthermore, the REPORT includes the justification of the public interest addressed in the aforementioned agreement,” the 19,000 units of tablets acquired by the Ministry that use the Android operating system, which require for their use and installation of applications the use of a Google account and which aim to establish the conditions for collaboration between the parties for the use of the G Suite for Education solution (the “Services”). The Parties recognize and accept that the use of the Services is governed by the following agreements, which the Ministry expressly accepts by signing this Agreement:

- The Terms of G Suite for Education included as Annex 1 (Terms of G Suite for Education) to this Agreement,

- The Data Processing Addendum, Annex 2.

In the signed Agreement, it is established, in point 10.2 Data Transfer, that: “If the storage or processing of the Customer's Personal Data involves transfers of the Customer's Personal Data from the EEA, Switzerland, or the United Kingdom to any third country that does not ensure an adequate level of protection under European Data Protection Law, and applies European Data Protection Law to the transfers of such data,” various scenarios are detailed depending on whether the customer has subscribed to such SCCs, which can be done “through the Administration Console.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/53

The Agreement defines:

To understand the subscribed services, within the “G SUITE for education technological solution, formed by a package of tools designed to allow teachers and students to access a set of digital and telematic services aimed at improving the development of educational activities and for them to innovate and learn together,” reference is made to point 16 of ANNEX 1 “terms of G SUITE for education,” indicating that “Services” means the G Suite for Education Services provided by Google and used by the Client in accordance with the Agreement. The Services are described at: ***URL.4, or at any other URL that Google may provide.”

Clicking the link leads to a GOOGLE page that summarizes the services about G SUITE, now GOOGLE WORKSPACE, in a specific section labeled “for education,” where the “Fundamentals” services, free version, are differentiated from other versions. It states that “additional products are not covered under the GOOGLE WORKSPACE agreement and are not services of it, subject to additional product terms.” It indicates that “it includes Google Workspace Services except Client-Side Encryption, Currents, Google Cloud Search, Google Workspace Migrate, and Workspace Add-Ons. This edition also includes: ‘Assignments, Classroom, and Chrome Sync as core services.’” It details what each consists of.

- “Assignments” is an application for learning management systems that allows end users to distribute, collect, and grade student work.

- “Classroom” is a web-based service that allows end users to create and participate in class groups. With Classroom, students can view assignments, submit assignments, and receive grades from teachers.

- “Chrome Sync” is a feature that allows end users to synchronize bookmarks, history, passwords, and other settings across all devices where they have logged into Chrome.”

Furthermore, the Google Workspace Services, which should be referred to for knowing what they are, can be seen on that same informational page.

“Admin Console” means the online tool that Google provides to the Client for the purpose of communication or reporting certain information and performing other management functions.”

“Additional Products”: products, services, and applications that are not part of the Services but can be

accessed through the Admin Console, or otherwise, to be used together with the Services.”

1.

“The nature of the application, indicating whether it is voluntary or not. Date of implementation at the center IES ***IES.1, indicating who authorized that original use at the center.”

It states that the CEUCD offers virtual services to faculty and students, with the intention of providing spaces to facilitate the combination of education.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/53

in-person and digital from all non-university public centers in the Canary Islands, and in order to guarantee the Canary Islands Law on Non-University Education and the achievement of the objectives of the Digital Education Action Plan (2021-2027). It details the different environments that offer virtual classrooms and digital services.

"All these alternatives, whose use is not mandatory," are available for non-university public educational centers in the Canary Islands, and are offered in order to respond to the educational needs of both teachers and students."

"The different virtual spaces are covered under the activity of personal data processing: 'Virtual learning and collaboration spaces,' registered by Order of 25/05/2018, of the CEUCD.

Regarding the voluntary nature of G Suite, in Exposition III of the Agreement between the Ministry of Education, Universities, Culture and Sports and Google Ireland Limited, it is stated that the use of G Suite for Education in public educational centers dependent on its Autonomous Community does not imply exclusivity of the use of this type of digital and telematic services over other similar ones.

In short, in the use of the G Suite application, under no circumstances should students be registered in the Service by the educational center without having the informed consent document signed by the families."

As for the implementation date at the center IES ****IES.1", according to the information gathered from the IES, the G Suite application for educational centers is implemented in that educational center (...)

"requesting the registration of student emails by the management team, once the informed consent signed by the legal guardians is obtained."

2. "Copy of the RAT reflecting the use of this GSUITE application."

By Resolution of the General Directorate of Organization, Innovation, and Quality, dated 11/09/2020, the activity of processing personal data related to the "solution of digital and telematic services for communication and collaboration G Suite" was registered.

On the other hand, by virtue of departmental Order No. 185/2018, of 25/05, the Ministry has declared the processing "Virtual learning and collaboration spaces." This information is available on the website of the Gobierno de Canarias.

Document 6 is provided, the RAT of "solution of digital and telematic services for communication and collaboration G SUITE, with the legal basis being Article 6.1.a). In the section on data transfers, it states that no data transfer is anticipated. In the section on international transfers, "GOOGLE IRELAND LIMITED is authorized through an Agreement with the Ministry." In security measures, reference is made to those of the ENS.

"CATEGORIES OF PERSONAL DATA Structure:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/53

- Identifying data: Identifier (corporate user or CIAL), name, surname, ID number, image, voice, and other identifying data such as: email, social media user, signature, electronic signature, and any other signature and identification system accepted by public administrations.

- Personal characteristics data: age and sex.
- Academic and professional data: educational center, teaching, level, area, training, qualifications, academic data, grades, and student productions in any type of format."

The processing called "virtual learning and collaboration spaces," among others, was subject to treatment registration by a resolution of the Minister dated 25/05/2018, as indicated in the copy of document 7.

3. "Risk analysis on personal data with the use of this application."

It states that the CEUCD has conducted a Data Protection Impact Assessment (hereinafter, DPIA) of G Suite in which the data processing manager (Directorate of Organization, Innovation, and Quality) and the Data Protection Delegates of the Ministry participated.

"The DPIA consists of the following documents, which are attached:

- DOCUMENT 8 (page 74/128): 'Data Protection Impact Assessment Report' (DPIA) of the personal data processing 'technological solution for communication and collaboration GS,' dated ***DATE.1(...). It indicates that the GESTIONA DPIA tool and the 'Practical Guide for Data Protection Impact Assessments subject to the GDPR' published by the AEPD (according to the website, it was published on 17/01/2018) were used, noting that there is a guide published in June 2021 titled 'risk management and impact assessment in personal data processing.'

"The DPIA has been carried out, 'given that the aforementioned processing involves the processing of personal data of minors under 14 years of age, as well as the use of data on a large scale,' and 'the use of new technologies.'

- "The main categories of data subject to the aforementioned processing are identifying data, personal characteristics data, and academic and professional data." Specifically, it includes:

Structure:

- Identifying data: Identifier (corporate user or CIAL), name, surname, ID number, image, voice, and other identifying data such as: email, social media user, signature, electronic signature, and any other signature and identification system accepted by public administrations.
- Personal characteristics data: age and sex.

C/ Jorge Juan, 6

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28001 – Madrid

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19/53

- Academic and professional data: educational center, teaching, level, area, training, qualifications, academic data, grades, and student productions in any type of format.

Then there is another section called "analysis of the processing," which briefly mentions:

- data lifecycle,
- activities of the process that include the transfer of data from the individual in "DRIVE" or "deactivation of user accounts: individuals will delete their data. Upon expiration of the agreement period, the CEUCD will instruct GOOGLE to delete the data."
- processed data, including age, image, grades.
- intervening technologies refer to "G SUITE services."

Within "analysis of the obligation to conduct a DPIA," it includes "evaluation of the level of risk," without a prior inclusion of "risk identification." In the evaluation of the level of risk, the following are listed:

1. Not providing information regarding data protection or not drafting it in an accessible and easy-to-understand manner.
2. Processing inadequate and excessive data for the purpose of processing.
3. Lacking a legal basis on which the processing of data is supported.
4. Processing personal data for a purpose different from that for which it was collected.
5. Not having an organizational structure, processes, and resources for adequate privacy management within the organization.
6. Storing data for periods longer than necessary for the purpose of processing and in accordance with current legislation.

7. Making international transfers to countries that do not offer an adequate level of protection.
8. Not processing or hindering the exercise of the rights of the data subjects.
9. Improper resolution of the exercise of rights of the data subjects in terms of time, format, and manner.
10. Selecting or maintaining a relationship with a data processor without having the appropriate guarantees.
11. Lacking supervision and control mechanisms over the measures that regulate the relationship with a data processor.
12. Not recording the creation, modification, or cancellation of processing activities carried out under its responsibility.
13. Not conducting an adequate impact assessment by the data controller in the cases detailed by the applicable regulations.
14. Not having an organizational structure, processes, and resources for adequate security management within the organization.
15. Error in the configuration of a system, application, workstation, printer, or network component.
17. Human errors in maintenance tasks.
18. Malicious software (viruses, trojans, ransomware).
19. Information leaks.
20. Inability to attribute all actions carried out in an information system to identified users.
21. Theft or loss of equipment, media, or devices containing personal data.
22. Violations of the confidentiality of personal data by employees or external personnel of the organization.
23. Poor or reversible dissociation that allows for the re-identification of data.
25. Access to information, services, applications, or devices in a non-consensual manner by unauthorized persons, bypassing barriers (Hacking).
26. Unauthorized manipulation or modification of information.
27. Inability to ensure the availability of information.
28. Denial of Service attack.
29. Existence of technical errors or failures that cause unavailability of information systems.
31. Natural disasters affecting infrastructures (floods, hurricanes, earthquakes, etc.).

Next, the "measures for risk reduction" are analyzed in a table, indicating measures, and in another box: probability/impact/residual risk (P/I/RR). For each of the 31 "threats-risks" mentioned in the list, it highlights:

- "Making international transfers to countries that do not offer an adequate level of protection," "measure": "making transfers to countries with adequate guarantees. Making transfers relying on adequate guarantees. Making transfers relying on one of the exceptions. Monitoring and reviewing suppliers" with P/I/RR "maximum," "limited," residual Medium.
- "Lacking supervision and control mechanisms over the measures that regulate the relationship with a data processor." Measures: "identification of the data processors involved in the activities associated with the processing. Monitoring and reviewing suppliers. Supervision and review of services provided by third parties. Verification of compliance" P/I/RR: Disregarded/limited/low.
- "Processing personal data for a purpose different from that for which it was collected," measure: "identification of the purpose of processing. Description of the data lifecycle associated with a processing," P/I/RR: limited/limited/low.
- In: "Theft or loss of equipment, media, or devices containing personal data," P: Significant / I: Limited / RR Medium.
- Malicious software (viruses, trojans, ransomware). Measures: Assessment of information security events and decision-making. Response to security incidents. Notification of security events to the competent supervisory authority and data subjects, evidence collection points," with P/I/RR "Limited/limited/low."

- In Information Leaks, "measures: assessment of information security events and decision-making. Response to security incidents. Notification of security events to the competent authority and interested parties. Collection of evidence. P/I/RR: Limited, Significant, medium.

The same measures apply to the "theft or loss of equipment, media, or devices containing personal data" and to "hacking."

In compliance, it is stated: "The informed consent document describes the main services and additional services available based on the end user, taking into account the age restrictions of each service for regulatory compliance."

"After analyzing the phases of the procedure, it is concluded that:

- the personal data that CEUCD provides to Google is minimal and therefore constitutes a low risk."

"SECURITY MEASURES

The security measures applicable are in accordance with Annex II (Security Measures) of Royal Decree 3/2010 of 8/01, which regulates the National Security Scheme in the field of Electronic Administration." It adds that it is defined in section two of Annex 1 of the agreement with GOOGLE, which provides as the processor, "of certificate of compliance with the ENS" EIPD with high category." It also refers in "storage" to "GOOGLE Drive" and in the section of "intervening technologies":

"DRIVE." In the section on "assignment or transfer of data to a third party for processing," it appears without any reference.

It also indicates in "optimization of processing" that:

"Both students and faculty access their Gsuite account through the CAS gateway (Centralized Authentication Service) with corporate username and password from the Government of the Canary Islands, which is in no case accessible by Google."

The result is of "acceptable residual risk."

The EIPD document is appended with:

Annex 2: MANAGES EIPD GSUITE, document resulting from the GESTIONA EIPD tool. It appears as document 9. It consists of tables in which a question, an answer, and a justification are separated by sections. The following sections exist:

1- "analysis of the need to carry out an EIPD," highlighting in section 5, technologies used for processing: Is the use of technologies that can be perceived as immature, recently created or released to the market, or with high risk for unauthorized access anticipated? Answer no, justification: "the technology used has a certificate from the National Security Scheme at a high level."

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

22/53

In the section on data processors, it is indicated regarding transfers that the transfer of data to Google is anticipated through an agreement.

- Data lifecycle

2- "analysis of the necessity and proportionality of the processing."

3- "3 and 4 identification of risks"

In its section on "1. Threats and risks," the 31 mentioned above are reproduced, plus "Deficiencies in the protocols for storing personal data in physical format."

3- "5 Risk Management," table already mentioned above in which, of the 31 threats, the measures and the P/I/RR are indicated.

Annex 4: List of GSUITE regulatory compliance, document to identify the compliance requirements of the GDPR, document 11.

- In the years 2018 and 2019, a risk analysis of all personal data processing managed by this

Department was carried out, which included the "activity of processing personal data related to virtual

learning and collaboration spaces."

It provides:

- document 12, resolution of 19/11/2018, approving the expenditure, and document 13, titled: "risk analysis report on personal data processing activities" of the CEUCD, version 1 of 5/12/2018, last updated 7/05/2019. It refers to the implementation of the ENS.

Related to the above, it provides document 14: "information security improvement plan," dated 14/10/2019, for the system in general, without specifying the GSUITE solution.

1. Regarding the question: "Measures taken to ensure the integrity and confidentiality of personal data of the application," it states:

"The administration of the Educational G Suite is managed by the staff of the User Support Center (CAU) of the Ministry of Education of the Government of the Canary Islands.

The personal data of the user (name, surname, CIAL, and email) are managed centrally from "PINCEL EKADE" (Computer Program for the management of Educational Centers owned by the CEUCD).

The user accesses the data provided in the various services with unique identifier and password.

Students can modify their password through the password recovery web service provided by CAU_CE."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/53

In relation to the measures adopted, the following is reported:

- The GOOGLE CLASSROOM solution meets the requirements of the ENS.

- The information systems of Google, LCC, have all been certified with HIGH category, in accordance with the requirements of the ENS, as indicated in the ENS Audit Report dated 14/10/2021. It provides:

- Document 19, certificate of compliance ENS GOOGLE SUITE Services dated 16/10/2019, with a renewal deadline of 16/10/2021, bearing the ENAC seal. The services included and mentioned are among others CLASSROOM, Gmail, DRIVE, DOCS, FORMS, and it is certified that the aforementioned information systems, all of HIGH category, and the related services have been audited and found compliant.

- Document 20, dated 30/06/2020, from the National Cryptologic Center, regarding the GOOGLE CLASSROOM application, "which is part of GS for Education." It indicates that GOOGLE states on its website that it has compliance with the ENS, which "establishes the principles and requirements for adequate protection of information in the Spanish Public Administration. Google Cloud (Google Cloud Platform and Google Workspace) has accredited its compliance with the requirements defined in the ENS for high category information systems."

"Additionally, and within the agreement on data protection of third countries with the European Union, the necessity of compliance with the requirements regulated through the European Regulation 2016/679 (GDPR) must be understood, which in its article 45 establishes the continuation of the agreements signed in 1995 between Europe and the United States for the protection of personal data and which are currently supervised through the "EU-U.S. Privacy Shield" program. The services offered by the company Google are circumscribed to this program with a certification obtained in September 2016 and which has a next certification review date of September 2020, as established by the 4-year review requirement."

- Document 21: "On 18/10/2021, BDO Auditores S.L.P. certifies with the ENAC seal that it has audited and found compliant with the requirements regulating the ENS in the field of electronic administration, the information systems that support the services of GOOGLE WORKSPACE, all of HIGH category, and the related services included in the annex, which are provided from GOOGLE centers located in Europe, finding them all compliant with the standard regulating the ENS." It includes a large number of services in the list of GOOGLE WORKSPACE services.

- Document 22 dated 17/02/2022: "Report on the status of the information security policy of the (CEUCD)," in which reference is made to the preparation of a risk analysis report.

EIGHTH: On 13/09/2022, it was agreed by the Director of the AEPD:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
24/53

"INITIATE SANCTIONING PROCEDURE against the DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS - CEUCD, with NIF S3511001D, for the alleged violations of the following articles:

- two violations of Article 32 of the GDPR, in accordance with Article 83.4.a) of the GDPR, and for the purposes of prescription in Article 73.f) of the LOPDGDD
- one violation of Article 6.1 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription in Article 72.1.b) of the LOPDGDD.
- one violation of Article 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for the purposes of prescription in Article 74.a) of the LOPDGDD."

"for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be a warning for each of the violations, without prejudice to what results from the instruction."

NINTH: On 29/09/2022, allegations from the respondent were received in which:

- It reiterates the statements made on 18/02/2022
- In the information, the option to present basic information at the time of data collection has been followed, with reference to additional information; the second layer refers to the "register of processing activities," the publication of the resolution of the DGOIC of 11/09/2020, by which the processing activity "solution of digital and telematic services for communication and collaboration G SUITE" is registered, "where information on international transfers is included," it again indicates the link ***URL.5 that leads to a page of the website of the Department of Public Administrations, Justice, and Security of the Government of the Canary Islands, where the different units that manage processing activities are listed, including the aforementioned General Directorate of Organization, Innovation, and Quality, and by clicking, it appears in the treatment records of that center the "solution of digital and telematic services for communication and collaboration G SUITE," by clicking on it, the full resolution of the General Directorate of Organization, Innovation, and Quality, of 26/09/2022 is displayed.

It estimates that the basic content is informed to the interested parties. Furthermore, it points out that after the initiation agreement, the "processing activity published in the RAT" has been UPDATED, providing document 6 A, pdf 2, in which the modification date is not indicated. In the same, the contact details of the DPOs are contained, the legal basis is expanded by adding 6.1.c) and 6.1.e) of the GDPR, and the mention of Articles 83 of the LOPDGDD, 2.1.l) of LO 2/2006 of 3/05 on education, and 24 of Law 6/2014 of 25/07 on non-university education in the Canary Islands is added. In transfers, it remains unchanged: "international transfers: The transfer of data is anticipated. Google Ireland Limited is authorized through an agreement with the CEUCD, with registered office at Gordon House, Barrow Street, Dublin 4, Ireland."

As a result of the opening of this file, they have updated the information of the first layer, including:

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
25/53

- information on international transfers,
- possibility of filing a complaint with the AEPD,
- inclusion of information about the DPOs and direct link to the resolution of the registration of the processing activity.

They provide document 2A, pdf 1, page 8, which shows that the contact details of the data controller are not included, the legal bases referred to in the updated RAT have been added, with the same content in "international transfers" as in the RAT, completing the contact details of the DPOs and a section on "right to complain to the supervisory authority," missing the reference to Article 13.2 c) of

the GDPR: “when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent prior to its withdrawal;”. In additional information as a second layer, there are two links leading to the Activity Register of processing.

They add that: “to the data subject, when informed directly, the possibility of filing a complaint with the AEPD has been expressly indicated.”

They provide document 2B, with an email from the Ministry to the complainant dated 28/04/2021 mentioning this possibility and providing the contact details of the DPO and several communications from the DPO to the complainant, such as those dated 19/07 and 5/10/2021.

They provide document 3C which contains the updated privacy policy.

- Regarding the Agreement with GS, it notes and refers to the link of various Autonomous Communities that have the same Agreement with GS (Madrid, Andalusia, and the Basque Country). They provide an opinion from the Basque Agency (pdf1 document 4A) regarding the collaboration agreement between the general administration of the CAPV and GOOGLE COMMERCE LTD. for the use of the services "GOOGLE WORKSPACE FOR EDUCATION" in the educational centers of the Department of Education, dated 16/09/2021, which indicates that the standard contractual clauses (“model contract clauses” or “standard contractual clauses SCC”) complement the “terms of service,” and the “data processing addendum” that were examined at the proposal of the Irish data protection authority by the Article 29 Working Group which determined on 30/12/2016 that they met the requirements of Decision 2010/87 EU. The opinion indicates that the SCC are available at a GOOGLE URL and correspond to the text of the SCC of Decision 2010/87/EU.

It refers to resolution TI/153/2017 of the AEPD which considered the guarantees established in the contract models provided by GOOGLE Inc to be adequate and that GS obtained the certificate of compliance with the ENS on 14/10/2019.

It estimates that the standard contractual clauses signed along with the Agreement, provides document 4, regulated in Article 46.2 of the GDPR, are adequate guarantees for the transfer of data to third countries, with validity confirmed by the CJEU in the aforementioned judgment, Schrems II.

It attaches the memorandum of the Agreement in document 5, dated 11/08/2020.

C/ Jorge Juan, 6

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28001 – Madrid

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26/53

-Details all the virtual services offered by the CEUCD, hosted on servers owned by it, except for GS, which is in the cloud, in combination with the face-to-face and digital education of all non-university public centers. All of these are not mandatory for use. These virtual spaces are covered under the activity of personal data processing: “Virtual learning and collaboration spaces,” through Order No. 185, dated 25/05/2018, from the CEUCD, which groups all the processing of “learning and collaboration used in the Ministry.”

Regarding these processes, risk analyses were conducted in 2019, providing documents 13 “Risk Analysis Report” 14 “Information Security Improvement Plan” and 15, “Order of 21/05/2019 approving the information security policy of the CEUCD in the field of electronic administration,” all in pdf, “therefore starting from risk analyses on the use of virtual spaces.”

Document 13 begins on 5/12/2018, updated to 7/05/2019, “In it, the activities of risk analysis carried out are detailed, and the results and objectives expected with the implementation of the minimum measures required by the National Security Scheme (ENS) are presented, allowing compliance with what is established in the General Data Protection Regulation (GDPR) regarding risk assessment for the processing of personal data.” “The assets under the responsibility of the CEUCD subject to compliance with the ENS have been included.”

Document 14, first version 7/12/2018, updated 14/10/2019 aims to “identify the tasks to be carried out to comply with the requirements of the National Security Scheme for the information systems of the Ministry of Education and Universities of the Government of the Canary Islands, hereinafter CEUCD.

-The CEUCD “has carried out a DPIA of G SUITE using the GESTIONA EIDP tool made available by

the AEPD.” It indicates that in documents 8 to 11 of pdf 3, the DPIA of the processing “technological solution for communication and collaboration GSUITE” is contained. It determines that “The main categories of data subject to the aforementioned processing are identifying data, personal characteristics data, and academic and professional data, and “given that the mentioned processing involves the processing of personal data of minors under 14 years of age, as well as the use of data on a large scale.” The DPIA is carried out between 8/03 and 12/04/2021, considering that it is implemented in schools at the beginning of the 21/22 school year, starting September 21. The legal basis is Article 6.1 a) of the GDPR and Article 92 of the LOPDGDD.

Starting from RD 311/2022 of 3/05 regulating the ENS, a risk analysis of all the treatments of the department and an impact assessment will be carried out, in accordance with what is included in the Technical Specifications for the contracting of the service of “Consulting and support for compliance with the National Security Scheme of the Ministry of Education, Universities, Culture and Sports,” in which point 3.1.4, dedicated to Risk Analysis and Impact Assessment, expressly includes the risk analysis and impact assessment of digital environments, or virtual spaces, of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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27/53

educational use offered by the Ministry to public educational centers that involve the processing of personal data. Documents 23 to 26 are provided.

- Regarding security measures, risk analyses of all the department's processing activities were conducted in 2019, including that of "virtual learning and collaboration spaces."

In the signed Agreement, Appendix 2 included the security measures, and GOOGLE reports on the security measures for international transfers (link), and the Addendum signed included security measures accepted by the CEUCD.

TENTH: On 19/05/2023, a resolution proposal is issued, with the following text:

“FIRST:

That the Director of the Spanish Agency for Data Protection sanctions the MINISTRY OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS, with NIF S3511001D, with warning fines for the violations of the following articles of the GDPR,

- two of Article 32 of the GDPR, in accordance with Article 83.4 a) of the GDPR, and for prescription purposes as serious under Article 73. f) of the LOPDGDD,

- Article 13, in accordance with Article 83.5.b) of the GDPR, and for prescription purposes as minor under Article 74.a) of the LOPDGDD.

- Article 6.1, in accordance with Article 83.5 a) of the GDPR, and for prescription purposes as very serious under Article 72.1.b) of the LOPDGDD. fine of [Insert corresponding text]

SECOND: That the Director of the Spanish Agency for Data Protection orders the MINISTRY OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS, with NIF S3511001D, that pursuant to Article 58.2.d) of the GDPR, within one month, certify having proceeded to comply with the requirement to complete the information that must be included according to Article 13 of the GDPR, and complete the risk analysis of GS.”

The proposal was notified on 22/05/2023, and on 06/06/2023 the following allegations were received:

1) The RAT "Solution of digital and telematic services for communication and collaboration G Suite" was modified on 06/06/2023. Attached is a link and document 2 in which, among other things, the data of the data controller and contact address, the DPOs and contact, and link, responsible for processing through the subscription of the Agreement and in international transfers, it is added that they are subject to standard contractual clauses with a link.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/53

2) The model of informed consent has been updated and published, in accordance with the aspects indicated in the resolution proposal. Document 3 and a link with the updated informed consent model are attached. The model provided differs in a section "over 18 years old" and in the "under 18 years old" section it states "and their representatives" with space to fill in the details of the student and the parent, mother, or guardian. The respondent indicates that "given the complexity of the processing, it will be requested that the consent be signed by students over the age of majority and, in the case of underage students, by their parents or legal representatives."

The possibility has been added that the consent granted here may be revoked at any time. A link to the "RAT" through gobiernocanarias.org is included. The identity, address, and contact information of the data controller, information about the data processor, and that the data transfer to GOOGLE is subject to a standard contractual clause are provided. This leads to a link to GOOGLE that provides information about the SCCs, including access to a PDF from September 2022.

Information about the withdrawal of consent is provided, and it is indicated that additional and detailed information can be consulted at a web address of the Government of the Canary Islands.

3) Document 4 is attached, which includes the creation and publication of the model for revocation of consent that has been created, as well as the link.

4) A section has been created on the Ministry's website that contains the "second layer" of information regarding the collection and processing of data for the interested parties, distinct from the RAT. A copy of document 5 and a link are provided.

5) A new risk analysis of the processing of "solution of digital and telematic services for communication and collaboration G Suite" has been conducted. Document 6 "risk analysis methodology" is provided. It indicates that it has been prepared in accordance with the AEPD's June 2021 guide on Risk Management and Impact Assessment in personal data processing, except for the impact assessment, which refers to the guide of the Catalan Data Protection Authority.

A copy of document 7, "report on the approval of the risk analysis" (11 pages) is provided, in which the contractor of the administrative services contract for compliance with the ENS has also participated.

The risk analysis is specified in:

File F 1, description of the processing and lifecycle of personal data,

File F 2, context evaluation,

And file F 3, impact and security controls.

A link and a password are indicated to access each of them, but it results in "it is incorrect or has expired," so the content cannot be viewed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/53

A new report on the necessity and impact assessment of the treatment in the solution of digital and telematic services for communication and collaboration G Suite has been prepared. It includes documents F 4 of EIPD with a link and password, which cannot be opened.

6)

It provides document 8, "information security report" from the delegated security officer, which indicates that consultancy and support services have been contracted for compliance with the National Security Scheme and management of the security of the Department, which is currently in the execution phase, where the risk analysis and impact assessment of the digital environments or virtual spaces for educational use offered by the Department to public educational centers, which involve the processing of personal data, are expressly included.

In section "3.2.1. Regulations, procedures, and security processes," it is explained that "In accordance with the principle of proactivity established in Article 5.2 of the GDPR, the criteria, requirements, and technical measures required for third-party digital applications, platforms, or tools for educational use in public educational centers in the Canary Islands must be established to ensure compliance with the

security measures and protection of personal data." "As a consequence of the above, the awarded company will specify a rigorous proposal in the form of a protocol or authorization procedure to be followed by the CEUCD, which will be formally applied in an authorization procedure for those applications, platforms, or third-party educational tools that process personal data and that the CEUCD considers suitable for the teaching-learning processes in non-university public educational centers in the Canary Islands."

The assets and information of GSUITE educational from the CEUCD have been evaluated, conducting risk analyses with the PILAR tool from the National Cryptologic Center. From this analysis, it is concluded that the assets associated with the educational G Suite of the CEUCD are within a level of risk considered acceptable for the CEUCD. It states that GS complies with the ENS.

It provides links to the files where the "valuation of information services" reports are stored.

- In document 8, evaluating the resolution proposal, it is noted that recommendations regarding the use of non-corporate applications and platforms by non-university educational centers dependent on the Department were issued on 27/07/2021, prior to the submission of the complaint, highlighting excerpts from its content.

7) On 16/09/2022, the circular from the General Directorate of Planning, Innovation, and Quality of the CEUCD is published, informing about the use of third-party applications not contracted through the educational G Suite service and about the use of information and communication systems with the educational community regarding data protection, where the following is specified:

"(...) the adjustments applied to the configuration of the educational G Suite of the Department of C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

30/53

Education, Universities, Culture, and Sports do not allow access to third-party applications that are not agreed upon, in which students must register with their G Suite educational account, in order to guarantee students' rights regarding personal data protection. (...)"

"(...) Regarding the use of information and communication systems with the educational community that are different from those provided by the CEUCD, reference is made to the Resolution of the Vice-Ministry of Education, Universities, and Sports which issues organizational and operational instructions directed at non-university public educational centers in the Autonomous Community of the Canary Islands for the 2022-2023 academic year, which includes in its section 3.12. (...)"

8) It is indicated that information was requested from GOOGLE regarding its adaptation to the ENS, and it responded that it complies with the ENS by providing a series of links;

- The first: ***URL.6 explains what the ENS is and that GOOGLE CLOUD and GOOGLE WORKSPACE have accredited their compliance.

- <https://cloud.google.com/docs/security> provides various information about security among other points, such as how GOOGLE responds to data incidents in GOOGLE CLOUD, protecting accounts in case of compromised credentials, using GOOGLE CLOUD tools to help reduce the risk of data theft, or how data is stored in the cloud with GOOGLE KEY MANAGEMENT.

- ***URL.7 opens a pdf file (April 20) that discusses security and compliance for GOOGLE WORKSPACE, referring to aspects such as malware control in emails and the tools available for containment and prevention.

- ***URL.8 leads to a 37-page pdf file about Google Workspace for Education, implementation of data protection guidelines, from February 2023, indicating that GOOGLE acts as the data processor of the data sent to it by the client.

- ***URL.9 leads to GOOGLE FOR EDUCATION, "Privacy and Security Center" with various information about data protection for the educational center.

- ***URL.10

9) It is indicated that the security officer has confirmed that the evidence provided by Google shows that at least since 10/16/2019, the information systems for Google G Suite Services were audited and found to comply with the requirements of the National Security Scheme with a high category. The

certificate was renewed on 11/18/2021. It provides the certificate, as well as the date of the aforementioned renewal. It provides a copy of a document from the National Cryptologic Center regarding the security and regulatory compliance of Google Classroom, which is an application that is part of the Google suite of tools for education.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

31/53

It provides a certificate from 10/18/2021 renewed on 10/18/2022 indicating that the information systems supporting the Google Workspace services included in the annex and provided from Google centers located in Europe in different countries have been audited and found to comply with the requirements of Royal Decree 3/2010 of 01/08 which regulates the ENS.

It also mentions that it complies with various standards, such as ISO IEC 27017 for information security controls applicable to the use of cloud services, ISO 27701 for personal identification information processor work, and international privacy laws, focusing on three main aspects:

- Expanding the requirements of ISO/IEC 27001 and ISO/IEC 27002 standards to include data privacy.
- Providing a framework for the implementation, maintenance, and continuous improvement of a Privacy Information Management System (PIMS).
- Including requirements and guidelines for organizations acting as controllers and processors of PII.

10) It accompanies a report in a link that was requested from GOOGLE, from an independent audit service, with information about Google Workspace (among others), although none of the two links mentioned contain information regarding this. It states that its utility is to evaluate the risks arising from interactions with the system during the period from 03/01/2022 to 02/28/2023. In particular, it provides information about the system controls that Google has designed, implemented, and operated to provide reasonable security, and that its service commitments and system requirements were met based on the security, availability, and confidentiality criteria of the trust services established in TSP Section 100 2017. Trust Services Criteria for Security, Availability, Processing Integrity, Confidentiality, and Privacy (includes March 2020 updates). 129 controls were analyzed and no deviations were observed.

Links are also provided that refer to safeguards for transfers, “Safeguards for international data transfers with Google Workspace and Workspace for Education” and “GOOGLE CLOUD's approach to European standard clauses,” referred to September 2022.

11) It provides a copy of the IES report, as allegations to the proposal in which it indicates that a letter from the complainant was received on 11/27/2020 and was responded to on 12/03, requesting on 12/28 advice from the inspection informing them of the actions to be taken that have been previously detailed. They add that due to the emergency situation of COVID-19 during the most complex time of education, their intention was to guarantee the education of students, and their actions were directed in that sense, having corrected the irregularities.

ELEVENTH: From the actions taken in this procedure and from the documentation in the file, the following have been accredited:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

32/53

PROVEN FACTS

1) The claimant filed a complaint with the AEPD on 14/09/2021. His 12-year-old son enrolled in IES ***IES.1 for the 19/20 academic year (first year of attendance) and states that both in that year and the following one, 20/21, he was registered for the use of the GOOGLE SUITE FOR EDUCATION (GS) platform without his authorization. The claimant indicates that on 8/07/2020, he submitted his son's enrollment to IES ***IES.1 for the 20/21 academic year (the year in which GSUITE from the Ministry

had not yet been implemented), not giving consent for the use of GSUITE that had been implemented by the IES without authorization from the CEUCD, responsible for the processing. According to the response from the IES to the complaint, among others, that of 28/12/2020, it is inferred that the registration in GSuite by the IES for the 20/21 academic year continued with the claimant's written request of 29/01/2021, "deletion of the account from the platform" "due to lack of consent" and a certificate from the IES of cancellation of the email account supporting GS, as well as a response from the IES on 4/10/2021: "On 16/01/2021, the account was deleted by the TIC coordinator (as per protocol, it remains suspended for 20 days until total deletion).", resulting in the cancellation date postponed until 7/07. "The educational team of XXX-XX A will be informed that the student... will no longer be able to use the GSUITE tool, established as a virtual learning environment reflected in the center's PGA."

2) The MINISTRY OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS-CEUCD, for non-university public educational centers in the Canary Islands, had the activity record of processing: "Virtual spaces for learning and collaboration," Departmental Order 185/2018 of 25/05/2018, which encompasses non-mandatory usage alternatives in combination with face-to-face education, in order to respond to the educational needs of both teachers and students. Included as such were "virtual classrooms," the applications "EVAGD," "CAMPUS," and "AULA DIGITAL CANARIA," all hosted on servers of the respondent.

As purposes of the processing, it is indicated among others:

"Distance education aimed at students, teachers, families, and administrative and service personnel." No data transfers or international transfers are foreseen.

3) The CEUCD signed an Agreement with GOOGLE IRELAND LIMITED on 28/09/2020 within the Plan for digital education, "for the use of GOOGLE SUITE FOR EDUCATION (GS) in public educational centers dependent on the CCAA of the Canary Islands," Official Bulletin of the Canary Islands 19/10/2020, complementing the offer of educational platforms of the "distributed management virtual learning environment (EVAGD), and CAMPUS, without implying exclusivity of the use of this type of digital and telematic services over other similar ones. The CEUCD implements it for the academic year.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/53

of the following year, 2021/2022, (09/09/2021 third year of stay of the student, child of the claimant).

For this purpose, there is a model of "informed consent" for use and treatment called: "solution of digital and telematic services for communication and collaboration GSUITE," approved by resolution of the General Directorate of Organization, Innovation, and Quality on 11/09/2020, available at the link:

***URL.11

GS processes data of students and teachers, including first name, last name, email, student avatar, CIAL (internal code of the CEUCD consisting of 10 characters).

"The services provided by GS use various academic and professional data provided by users: student productions, grades, groups, subjects... The purpose of processing this data is to access the GS Educational service for strictly educational purposes, to support the teachings of public non-university educational centers in the Canary Islands."

In Appendix 1 of the data processing addendum to the Google Suite agreement, titled "object and detail of data processing," it is stated that the object is the provision by Google of services and technical support to the customer.

In section 4 of the Agreement, it is indicated that European data protection legislation applies when data processing is carried out in the context of the activities of a customer establishment in the European Economic Area or when the customer's personal data is located in the EEA. In section 5, it is stated that GOOGLE is a data processor of the customer's personal data. In section 5.2 "scope of processing" regarding instructions from the customer to GOOGLE.

In section 7 titled "Data Security," it is indicated that GOOGLE must adopt technical and organizational

measures to protect the customer's data as described in Appendix 3 "Security measures that include data encryption, assistance for restoring access after an incident, and that GOOGLE will provide users with additional security controls to allow the customer to take measures to secure their data and provide the customer with information about the security of access and use of their data and that it will assist the customer in ensuring compliance with its obligations in accordance with Articles 32 to 34." In point 7.5, the customer is given the option to request reports from Google for their review in order to demonstrate GOOGLE's compliance with its obligations under the data processing addendum. Point 7.5.2 allows GOOGLE to permit the customer or an externally designated auditor to conduct audits for the same purpose.

4) The respondent states that as the legal basis for the processing of personal data carried out with the GSUITE application subscribed to through the Agreement, implemented from the 21/22 academic year, the consent provided for in Article 6.1.a) of the GDPR would apply. Furthermore, it stated that the processing is based on compliance with legal obligations and the exercise of public powers conferred on the data controller, mentioning various articles from different laws related to digital competence.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/53

5) According to the information provided by the claimant, the IES offered on its website for the 21/22 academic year (the year of implementation of GS-Convenio GOOGLE CEUCD) a "welcome manual," containing information about the content of the GS platform for education, indicating that the educational institution must only and exclusively activate the service for students if it possesses the informed consent document from the families who have signed accepting the participation conditions, with a link to the aforementioned "informed consent" document. GS, according to the respondent, is a tool for educational purposes to support the teachings of non-university public educational centers. In the same link, there is a section of "Frequently Asked Questions," which confirms that the centers have previously used GS, as it states:

"If we already have a Google account functioning, with the center's domain, can I continue using it?" and another regarding the export of the current structure of GS from the center to the new GS of the Department, or to the consent that should have been granted to the center for the use of said service. It is also reported that under the GOOGLE/CEUCD Agreement, there is a record of processing activities (RAT) called "technological solution for communication and collaboration G Suite," which did not exist with the centers according to the frequently asked questions. The purpose of processing this data is access to the G Suite Educational service for strictly educational purposes, to support the teachings of non-university public educational centers in the Canary Islands.

6) The CEUCD is also aware and provides in previous documents (document 1) the "No consent from parents or guardians" through the "informed consent form" for the G SUITE for EDUCATION services of the claimant, dated 09/09/2021, academic year 21/22 regarding the processing activity: "solution of digital and telematic services for communication and collaboration G SUITE." It is confirmed that in the mentioned academic year, the data of the claimant's child was not processed, although the claimant highlighted deficiencies in the information regarding the collection of data for informed consent.

7) The model of informed consent for the academic year in which GS is implemented by the Department, year 21/22, is provided as document 2 by the respondent in previous proceedings, which can be accessed at the address:

***[URL.1](#)

In addition to providing information, the use and processing of personal data included in the processing activity "technological solution for communication and collaboration G Suite" is authorized, with two boxes, one: "consents," the other: "does not consent."

The model of the document did not contain:

- the contact details of the responsible party, nor the contact details of the DPD.
- in the exercise of rights, it does not mention "the existence of the right to withdraw consent at any

time."

- recipients or categories of recipients of personal data, if applicable.

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

35/53

- "where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of a decision of adequacy by the Commission, or, in the case of transfers indicated in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and the means to obtain a copy of these or the location where they have been made available."

- "whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;"

Although it offered to consult additional information by referring to a link, this leads to the complete "Record of Processing Activities," which was approved on 11/09/2020, containing (doc 6 of prior proceedings) among others:

- contact details of the responsible party and the appointment of the DPO, although their contact details are missing.

- No data transfer is foreseen.

- In international transfers, it only states that GOOGLE IRELAND is authorized through an Agreement with the CEUCD.

In allegations to the agreement, in the updated RAT - document 6 A, pdf 2 - provided by the respondent, the information regarding the specifics of international transfers is still missing, and it adds in the legal basis, in addition to consent (which has indicated that if not granted, the data of the minor should not be processed, as it is a complementary tool to in-person classes, not the only one and voluntary), Articles 6.1.c) "the processing is necessary for compliance with a legal obligation applicable to the data controller" and 6.1.e), the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller; of the GDPR 2.1.I) of LO 2/2006 of 3/05 on Education and 24 of Law 6/2014 of 25/07 of the Canary Islands on non-university education.

Information is also missing regarding "whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;"

In allegations to the proposed resolution, the reference to international transfers and the option to withdraw consent, as well as the consequences of not granting consent, have been completed in the informed consent model.

8)

The registration of student account management in the GS can be carried out by the management team from the CAUCE service console (user attention center of the Ministry of Education), "provided that the informed consent document from the families has been signed," in the "student account management" section, displaying the list of all students, needing to select them to request their GSUITE account and send their request. To deactivate the account, the same operation will be performed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

36/53

9) The respondent did not provide a copy of the contract signed by IES ***IES.1 with GOOGLE for the use of GOOGLE SUITE that has been utilized during the 19/20 and 20/21 academic years, indicating

that it had to seek a system to ensure that classes could be conducted during the declaration of the COVID-19 pandemic. The claimant added that he had difficulties obtaining a copy of the content of the subjects from that last year. It is not recorded that the IES, when implementing GS, conducted a risk analysis of the processing regarding the use of personal data with GS.

The Order of 23/05/2019, which approves the internet domain policy of the Public Administration of the Autonomous Community of the Canary Islands, established that educational centers cannot have their own domains different from the authorized corporate ones.

For the use of GS, a proprietary domain must be available. The CEUCD used for the GS of the Agreement, starting year, academic year 21/22, a proprietary domain for its entire scope:

***DOMINIO.1. The previous year, academic year 20/21, the IES used GS with the account of the domain ieslalaboraldelalaguna.es, as stated in the IES's response to the claimant dated 4/10/2021, or communications regarding the deletion of the accounts of the domain ieslalaboraldelalaguna.es to the students at the end of the academic year 20/21 and how to transfer the contents from the old GS to the new one. "On 7/07/2021, the definitive deletion of the account of student B.B.B. was carried out," "in mid-September, the current Gsuite accounts will be deleted to assign the new ones for the 2021/22 academic year." (according to the IES email dated 18/06/2021)

10) The respondent previously submitted an EIPD regarding the "technological solution for communication and collaboration GS," dated 4/05/2021, after the Agreement was published (19/10/2020) when the GS tool had not yet been put into operation, which is carried out in the academic year 21/22, using the tool from the AEPD website: "GESTIONA EIPD" "aimed at SMEs" according to the AEPD website. In the document, a risk analysis regarding GS is conducted, concluding with an acceptable risk. The document does not provide a specific identification of risks, based on 32 sections used for "risk level assessment." The risk assessment takes into account "measures" that do not consider the specific legal relationship of data processing entrusted to GOOGLE and the various tools used for processing (Gmail, DRIVE, Classroom, doc).

11) In allegations to the proposal, the respondent has modified the risk analysis of the use of GS with a new methodology, although the part of the analysis result could not be verified as the files they sent could not be opened. The same applies to the modified EIPD. Furthermore, it indicates that it is currently in the final phase of executing a service contract for compliance with the ENS scheme, which includes the risk analysis and impact assessment of the digital environments or virtual spaces for educational use that the Ministry offers to public educational centers and that involve the processing of personal data.

12) The respondent began issuing instructions and circulars regarding the use of educational platforms and non-corporate applications by educational centers on 27/07/2021.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

37/53

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5/12 on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The GDPR states:

Article 1:

"1. This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data.

2. This Regulation protects the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data."

Article 3:

"1. This Regulation applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained in or intended to be included in a filing system."

Article 4:

For the purposes of this Regulation, the following definitions shall apply:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or otherwise.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

38/53

automated or not, such as collection, recording, organization, structuring, preservation, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, suppression or destruction;

[...]

7) "data controller" or "controller": the natural or legal person, public authority, service or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union law or the law of Member States determines the purposes and means of processing, the controller or the specific criteria for its appointment may be established by Union law or the law of Member States;

8) "data processor" or "processor": the natural or legal person, public authority, service or other body that processes personal data on behalf of the controller;

GOOGLE SUITE EDUCATION, currently GOOGLE WORKSPACE, is a suite of cloud-based services from Google that allows collaborative editing of documents and instant communication from any device and location, which gained prominence following the onset of the pandemic as communication tools in educational institutions due to the absence or insufficiency of the means available to the data controllers.

The digital services of GOOGLE SUITE for education are linked to email accounts associated with domains of educational institutions. Typically, the Ministry of Education, as the data controller, is the one that creates a domain for managing these accounts for educational institutions. In the case of the Autonomous Community of the Canary Islands, the domain canariaseducación.es was created for managing these accounts for publicly owned educational institutions, preventing the proliferation of each center, institute, school, or educational establishment having a domain like @nombredelcentro.org and managing its account separately. Once the domain canariaseducación.es was created, email accounts linked to that domain would be created for teachers and students. Each user has an email address associated with the digital services.

When logging into any Google applications, access is made using the assigned email account and its password, granting access to all the content of the services offered by Google Suite.

The services and configurations are managed from the "admin console," an online tool and console that Google provides to the client to manage the services.

This would include security options in the configuration of accounts, mailboxes, and messages.

The application has several editions, with the basic one being "FOR EDUCATION FUNDAMENTALS,"

which is free for institutions that meet the requirements. In this version, additional services are not included as stated in the Agreement; however,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
39/53

In the information regarding consent for processing, information about such services is introduced, which may not correspond to reality. The customer's account is hosted by GOOGLE.

The twenty-third additional provision of Organic Law 2/2006, of 3/05, on Education, establishes, in general terms, one of the basic principles regarding the processing and communication of personal data within its scope of application, by stating:

“3. In the processing of student data, technical and organizational standards will be applied to guarantee their security and confidentiality. The teaching staff and other personnel who, in the exercise of their functions, access personal and family data or that affect the honor and privacy of minors or their families will be subject to the duty of confidentiality.”

The European Data Protection Committee has included in Guidelines 5/2020 on consent in the sense of Regulation (EU) 2016/679 version 1.1 adopted on 4/05/2020, that, “to obtain valid informed consent, at a minimum, the following information must be provided to the data subjects: ‘i. the identity of the data controller, ii. the purpose of each of the processing operations for which consent is sought, iii. what (type of) data will be collected and used, iv. the existence of the right to withdraw consent, v. information about the use of data for automated decision-making in accordance with Article 22, paragraph 2, letter c), when relevant, and vi. information about the possible risks of data transfer due to the absence of an adequacy decision and appropriate safeguards, as described in Article 46.’” The Committee adds that “a data controller relying on the consent of the data subject must also address the separate information obligations set out in Articles 13 and 14, in order to comply with the stipulations of the GDPR. In practice, compliance with the information obligations and adherence to the requirement of informed consent can often lead to an integrated approach (..)”

In this case, regarding compliance with the right to information for the affected parties in the data collection, in relation to the agreement with Google, published in the Official Gazette on 20/10/2020, and implemented in the 21/22 academic year, it is noted that from the documentation provided by CEUCD, it is not evidenced that all the information required in Article 13 has been provided to the interested parties, neither integrated into the clause used for obtaining consent nor elsewhere. The informed consent clause used by CEUCD lacks some informational elements that must be provided to the data subject at the time of data collection, as indicated in Article 13 of the GDPR, which states:

“1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
40/53

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, if applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they

have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information pursuant to paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

Thus, the "informed consent form" lacked, prior to the initiation agreement:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

41/53

- contact details of the controller.
- contact details of the DPO.
- the right to lodge a complaint with the supervisory authority,
- information on the international transfer of data, "where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of the transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available."
- recipients or categories of recipients of the personal data, if applicable.
- "when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;"
- "the right to lodge a complaint with a supervisory authority"
- "whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data."

By accessing the link that was provided as additional information, one can access the complete record of processing activities, that is, the resolution of the D. Gen. that registers the processing activity "technological solution..." document 6 of prior proceedings.

In this regard, it should be noted that the clause is implemented for minors who can give consent and for whom reading all the content of the RAT is not appropriate due to their level of understanding nor does it seem clear and simple. Regarding the content of the information referred to in Article 13, the

RAT provided information on:

- contact details of the data controller.
- contact details of the DPO: although it identifies those designated as such, it does not establish the contact, nor the means, nor an address, and it is not considered to contain such contact information.
- It states that no data transfer is foreseen.
- It only states that GOOGLE is authorized through an agreement with the CEUCD for the transfer of data, without adding the details contained in the provision.

After receiving the initiation agreement, the respondent has introduced the following modifications in the "informed consent form":

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

42/53

- "Right to lodge a complaint with the supervisory authority: The AEPD is the independent state supervisory authority responsible for ensuring compliance with data protection regulations. It guarantees and protects the fundamental right to the protection of personal data of citizens, and a link for the submission of complaints through the AEPD's electronic headquarters.
- Contact details of the DPO.
- The aspects of the withdrawal of consent and the complete information regarding international transfers remain incomplete.
- The data controller is still identified, but the contact details are ignored.
- It still does not indicate whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide personal data and is informed of the possible consequences of not providing such data;
- Another link refers to additional information, which contains the resolution of the General Directorate of Regulation, Innovation, and Quality dated 11/09/2020, updating the registry of personal data processing activities to 26/09/2022, "TECHNOLOGICAL SOLUTION FOR COMMUNICATION AND COLLABORATION G SUITE" (document 6 A of pdf 2) in which, within the information of the RAT, the contact details of the data controller are provided.

In the allegations to the proposal, the respondent has completed the information on the collection by introducing the withdrawal of consent, regarding transfers and consequences, along with the identification of contacts and DPO, changing the link of the second layer, thus remedying the infringement, although at the time of initiating the procedure, the commission of the alleged infringement was evidenced.

III

Regarding the scope of implementation of GOOGLE SUITE FOR EDUCATION, through the signed Agreement, it is noted that the risk analysis is carried out through the application "GESTIONA EIPD" on 4/05/2021.

However, it is noted that the risk analysis does not take into account, for example:

- In the "description of the processing," there is no intrinsic reference to the technological solution, where each tool may imply a differentiated risk, such as the use and processing in the cloud, that of Gmail, sharing tools like DRIVE, etc., or the option to withdraw consent and the export of data, to name just a few examples.
- The risks analyzed are not specific to the processing but are generic ones that are part of a list from the "GESTIONA EIPD" application that the AEPD offers as a basic free tool on its website. The list of risks from this tool is directly collected without first identifying the specific risks of the application.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

43/53

- The risk analysis has not been conducted by the Directorate-General considering the risks highlighted by its manager. It does not take into account the inherent risks of the application for the rights and freedoms of individuals nor how Google manages them, which prevents appropriate measures from being taken regarding such risks, including risks to minors.

Thus, in accordance with Recital 83 of the GDPR, "in order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which may in particular cause physical, material, or immaterial damage," which has not been evidenced in this case.

Regarding the GESTIONA EIPD tool, the AEPD's guide on "risk management and impact assessment in the processing of personal data from June 2021" states:

"... the AEPD has published the GESTIONA EIPD tool, which guides users through the basic elements that must be considered in risk analyses of processing and in impact assessments. This tool provides the minimum bases to initiate risk management activities in the scope of the GDPR, including compliance requirements to enable small and medium-sized enterprises, which do not have a framework for risk management in their organization, to start identifying, assessing, managing the risks of personal data processing, and executing EIPD."

On the AEPD website, regarding GESTIONA, it adds:

"GESTIONA, in its state of evolution, is the starting point for beginning risk management."

"Based on the documents obtained, the controllers and processors of personal data must carry out any necessary adaptations specifically for each personal data processing; taking into account the risks that may arise for the rights and freedoms of natural persons from such processing depending on its nature, scope, context, and purposes considering Recital 76 and Article 35.1 of the GDPR. GESTIONA EIPD is a decision support tool whose use generates basic documentation and in no case exhaustive on which a risk analysis and management must be carried out by the responsible and designated persons to comply with the provisions of the GDPR and the LOPDGDD."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

44/53

This basic documentation will serve as a starting point that must be completed and analyzed by the personnel responsible for processing and, where applicable, the designated person, following the guidelines established in the risk management and impact assessment guide for the processing of personal data, in order to demonstrate at all times that the processing is carried out in accordance with the requirements.

"Gestiona EIPD is aimed at SMEs."

In relation to the above, given the specificity of the educational field and the processing of minors, and the type of application with all the tools available, GESTIONA does not take these circumstances into account in the basic risk level analysis carried out by the defendant.

- It is noted that the threats-risks, (31) could be minimal, are not specific and concrete, and may be common to many treatments, with a series of them related to the principles of Article 5 of the GDPR more related to regulatory compliance. Recital 84 of the GDPR states that the assessment must be particularly about the origin, nature, particularity, and severity of such risk.

- While it is indicated that the personal data that CEUCD provides to Google is minimal and therefore constitutes "a low risk," there is no mention of the potential data that could arise from the use of the application, such as images, forms, sounds, email attachments, grades given by teachers, productions made by students, by way of example, nor the processing carried out by GOOGLE to provide the

service and its risks.

- The defendant has provided a certificate with the ENAC seal of compliance of GOOGLE SUITE with the ENS, and a report from the National Cryptologic Center on the GOGLE CLASSROOM application, which is part of GSUITE, indicating that it has compliance for the high-level ENS.

Article 156.2 of the LRJSP states the following:

“2. The National Security Scheme aims to establish the security policy in the use of electronic means within the scope of this Law, and is constituted by the basic principles and minimum requirements that adequately guarantee the security of the information processed.”

On the other hand, it should be noted that Royal Decree 3/2010, of January 8, which regulates the National Security Scheme in the field of electronic administration, provides in its Article 1.2 that “The National Security Scheme is constituted by the basic principles and minimum requirements required for adequate protection of information. It will be applied by public administrations to ensure access, integrity, availability, authenticity, confidentiality, traceability, and preservation of the data, information, and services used in electronic means that they manage in the exercise of their competencies.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

45/53

However, the GDPR demands the identification, evaluation, and mitigation of risks to the rights and freedoms of individuals in the processing of personal data. Mitigation must be carried out through the adoption of technical and organizational measures that ensure and also demonstrate the protection of these rights. These measures must be determined with reference to the nature, scope, context, and purposes of the processing. Additionally, these measures will be reviewed and updated when necessary. Ultimately, the GDPR requires a risk management process for the rights and freedoms of data subjects that goes beyond what is contemplated in the ENS.

Furthermore, risks arise from the applications used by students when accessing and operating within them, not from the assets of the entity itself. The ENS contains basic principles and minimum requirements for adequate information protection to ensure access, integrity, availability, authenticity, confidentiality, traceability, and retention of the data, information, and services used in electronic media managed in the exercise of their competencies. The security measures adopted by the data processor are not taken into account, although some of them are included in the Agreement, and those that the respondent may additionally require as the data controller and the oversight they can review or propose.

- Brief and insufficient reference to the risk of processing international transfers, and to the measures.
- The conclusions reached from the risk analysis regarding probability, impact, and residual risk appear without explanation and lack logic; for example, the risk of information leakage: medium risk, and confidentiality breaches of data by employees or external personnel: low, unauthorized manipulation or modification of information that focuses only on user registration management: low.
- Incomplete or partial description of the "threats risks." Simplification of the "measures" section that leads to considering the result in probability/impact residual risk.
- Specifications regarding the uses and legal position of the parties in the additional services (YouTube, Maps, Photos) if implemented, although the Agreement indicates that they are outside the free version used by the respondent.
- Access to the GS platform is made through the creation of a Gmail email account for students, without determining the risks to rights and freedoms and the impact this may have on them.
- The risks and guarantees of cloud operation of stored data.
- Default settings that cannot be varied or can be, depending on age.
- Processing and risks according to ages of videos or recording of classes by video.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

46/53

- Little explanation of the risk in international data transfers.
- Lack of collaboration from GOOGLE as the data processor in the risk assessment.

Recitals 74 and 78 of the GDPR state:

“(74) The responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to apply appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

Regarding the risks expressed by the respondent, they were evaluated in 2018 and 2019, and apart from focusing on the ENS and virtual activities, they did not include those of the use of GS in the IES (years 2019 and 2020), nor do they assess the risks to the rights and freedoms of individuals.

The risk analysis on the GSUITE application is considered incomplete in the structural unit that entails the attribution of such infringements, subsuming into the one that contains the expressed shortcomings.

Therefore, it is considered that the respondent infringed the GDPR in Article 32 of the GDPR, which states:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure processing security.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

47/53

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data following the instructions of the controller, unless required to do so by Union law or the law of the Member States.

IV

Regarding the processing of the claimant's child's data in the years 2019/2020 and subsequently 2020/2021 by the IES, and prior to the implementation of the Agreement, the GDPR considers the controller of the processing, in accordance with Article 4.7 of the GDPR:

“the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union law or the law of the Member States

determines the purposes and means of the processing, the controller of the processing or the specific criteria for its appointment may be established by Union law or the law of the Member States;” It is the controller of the processing who, through the instruments regulated in the GDPR itself such as the record of processing activities, risk analysis, or data protection impact assessment, must ensure the protection of that right by complying with all the principles set out in Article 5.1 of the GDPR, adequately documenting all decisions made in order to be able to demonstrate it. In this case, it was the IES that decided to hire GS, exercising a determining influence on the processing, without there being a record of processing activity, as certified by the approval from the Ministry of the RAT “technological solution for communication and collaboration G SUITE.” It should be clarified that the infringement of the lack of legitimacy imputing Article 6.1 of the GDPR is not due to the GOOGLE-CEUCD Agreement, but rather due to the use over two consecutive years by an IES, which lacks the status of controller of the processing and consequently lacks the competencies as a controller, of the tool before the approval of the Agreement and the implementation of the tool. The GDPR states in its Article 5.2: “The controller shall be responsible for compliance with the provisions of paragraph 1 (principles of processing, including the manner in which data must be processed, ‘lawfully, fairly, and transparently’) and shall be able to demonstrate it (‘accountability’). This implies that the said controller is the one who assumes its own responsibility directing and coordinating the matter, including that of the personnel providing services to it.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

48/53

It is not recorded that the application of the platform in the IES was complementary as indicated in the agreement signed by the Ministry. In the implementation by the IES, as inferred, the claimant did not provide consent, although they were registered in the platform, and it was consent that was used as the legitimizing basis. With the creation of the GS account for education by the IES, using a proprietary domain, each student was assigned a username and password that allows them to enter the GS solution, logging in to any of the Google applications. Its use can be made from different devices as it operates in the cloud, requiring internet access. The services and configurations are carried out from the “admin console,” “an online tool and console that Google makes available to the client to manage the services.” The application has several editions, with the basic one being “FOR EDUCATION FUNDAMENTALS,” free for institutions that meet the requirements. The client account is hosted by GOOGLE. It is considered that the Ministry is responsible for the processing of the claimant's child's data without legal basis, infringing Article 6.1 of the GDPR, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Article 7 of the GDPR states: "Conditions for consent":

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

49/53

1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also refers to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from other matters, in an intelligible and easily accessible form, and using clear and simple language. No part of the declaration that constitutes a violation of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed of this. It shall be as easy to withdraw consent as it is to give it.
4. In assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.

All of this is in accordance with what is established in Article 7 of the LOPDGDD, regarding the consent of minors (under 18 years), which states:

"1. The processing of personal data of a minor shall only be based on their consent when they are over fourteen years old.

Exceptions are made in cases where the law requires the presence of the holders of parental authority or guardianship for the execution of the act or legal transaction in which consent for processing is obtained.

1. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

The respondent does not make any allegations regarding this aspect, acknowledging in submissions to the proposal that it implemented a system to continue teaching due to the outbreak of the pandemic, indicating that it instructed the IESA to use the applications that had been approved by it.

For the use of GOOGLE SUITE, a distinction must be made between minors under 14 years of age and those over this age who must provide consent themselves. In this case, the complainant had not provided consent for the processing of their children's data under 14 years of age.

On the other hand, there is no record that, for this implementation, risk analyses were carried out, as provided for in Article 32 of the GDPR, which pertains to security measures, and it is estimated that it has violated this article, as the appropriate technical and organizational measures depend on the risks to the rights and freedoms of natural persons in order to ensure a level of security appropriate to the risk. In this case, there are no such measures that should have been implemented, likewise, by the data controller, in this case, the respondent as the competent entity.

V

The violations are included in Article 83.4.a) and 83.5.a) of the GDPR, which states:

"4. Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

"5. Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"
b) the rights of data subjects under Articles 12 to 22;"

Article 58.2 of the GDPR states: “Each supervisory authority shall have all of the following corrective powers:

“d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame.”

Article 83.7 of the GDPR adds:

“Without prejudice to the corrective powers of supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

The Spanish legal system has opted not to impose fines on public entities, as indicated in Article 77.1.

c) and 2. 4. 5. and 6. of the LOPDGDD: “1. The regime established in this article shall apply to the processing for which they are responsible or which they carry out:

[...]

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

51/53

“c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.”

“2. When the responsible parties or data processors listed in section 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed.

The resolution shall be notified to the responsible party or data processor, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of interested parties, if applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

4. The resolutions related to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities in section 1 of this article, with an express indication of the identity of the responsible party or data processor that committed the infringement.”

VI

For the purposes of prescription, the LOPDGDD indicates:

Article 72. Infringements considered very serious:

“1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

“b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

Article 73 of the LOPDGDD indicates: “Infringements considered serious”:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

52/53

"In accordance with the provisions of Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall prescribe after two years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

Article 74 of the LOPDGDD indicates:

"Those remaining infringements of a merely formal nature of the articles mentioned in sections 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and shall prescribe after one year, and in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679."

VII

Article 58.2 d) of the GDPR states that each supervisory authority may "order the responsible party or data processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In this case, it is not evidenced that the respondent has conducted a risk analysis in the terms outlined in the grounds III of this resolution.

It is noted that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO SANCTION with a warning the DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS, with NIF S3511001D, for the infringements of the GDPR in its Articles:

- 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for prescription purposes as minor in Article 74.a) of the LOPDGDD.

- 32 of the GDPR, in accordance with Article 83.4 a) of the GDPR, and for prescription purposes as serious in Article 73.f) of the LOPDGDD,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

53/53

- 6.1 of the GDPR, in accordance with Article 83.5 a) of the GDPR, and for the purposes of prescription as very serious under Article 72.1.b) of the LOPDGDD. Fine of

[Insert the corresponding text]

SECOND: NOTIFY this resolution to the DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS.

THIRD: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

FOURTH: ORDER the DEPARTMENT OF EDUCATION, UNIVERSITIES, CULTURE AND SPORTS OF THE GOVERNMENT OF CANARY ISLANDS, with NIF S3511001D, to, pursuant to Article 58.2.d) of the GDPR, within one month from its receipt, demonstrate compliance with the measures to

complete the information in the risk analysis regarding G SUITE educational, which constitutes the essential element of the infringement of Article 32 of the GDPR.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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